

STATE OF NEW YORK

10866--A

IN ASSEMBLY

April 8, 2026

Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the city of New York to discontinue certain parkland in the borough of Queens

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, but notwithstanding
2 any provision of state or local law to the contrary, the city of New
3 York is hereby authorized to discontinue permanently the use as park-
4 lands and alienate the lands described in section three of this act and
5 to transfer such land to the metropolitan transportation authority for
6 the purpose of enabling the New York transit authority to construct a
7 new permanent at-grade and subsurface signal tower facility and track
8 crossover. Such conveyance shall be granted upon such terms and condi-
9 tions as the city of New York and metropolitan transportation authority
10 shall determine, including terms and conditions for the metropolitan
11 transportation authority to ensure that the city of New York can comply
12 with section four of this act. The metropolitan transportation authori-
13 ty, as consideration for such transfer, shall pay to the city of New
14 York the fair market value of the parklands being discontinued.

15 § 2. The authorization provided in section one of this act shall be
16 effective only upon the condition that the city of New York dedicates an
17 amount equal to or greater than the fair market value payable by the
18 metropolitan transportation authority, for the parklands being discon-
19 tinued towards the acquisition of new parklands or capital improvements
20 to existing parklands and recreational facilities within the borough of
21 Queens.

22 § 3. The lands hereby authorized by section one of this act to be
23 discontinued permanently as parkland and designated to be transferred to
24 the metropolitan transportation authority are located in the county of
25 Queens, city and state of New York in a park known as the Rockaway Park,
26 and are bounded and described as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD15370-02-6

1 AREA A: ACQUISITION OF PROPERTY RIGHTS WITHIN TAX LOT 10 IN BLOCK
2 16160, WITH ADDRESS OF 3-11 BEACH 104 STREET, BOROUGH OF QUEENS:

3 BEGINNING AT THE POINT OF COMMENCEMENT, (N=152034319, E=1032672.026)
4 (NAO 83 (2011), NEW YORK LONG ISLAND ZONE NUMBER (3104) WITNESSED BY A
5 CROSS CUT IN THE CONCRETE, WHICH IS AT THE INTERSECTION OF WESTERLY
6 RIGHT OF WAY LINE OF BEACH 104TH STREET, A FIFTY FEET WIDTH RIGHT OF
7 WAY, AND NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY, A FIFTY FEET
8 WIDTH RIGHT OF WAY, RUNNING THENCE;

9 AT A DISTANCE OF 190.20 FEET AND BEARING ANGLE OF S=69°-40'-23" W TO A
10 POINT LOCATED ON THE NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY
11 (N=151968.247, E 1032493.671), THENCE;

12 A DISTANCE OF 5.00 FEET AND ANGLE OF N=22'-11'-20" W, TO A POINT
13 LOCATED ON THE BORDER OF BLOCK 16160 AND BLOCK 16161 (N=151972.879,
14 E=1032491.781), THENCE;

15 A DISTANCE OF 190.20 FEET AND ANGLE OF N=69°-40'-23" E, PARALLEL WITH
16 ROCKAWAY FREEWAY RIGHT OF WAY, TO A POINT ON THE WESTERLY RIGHT OF WAY
17 LINE OF BEACH 104TH STREET (N=152038.951, E=1032670.137), THENCE;

18 A DISTANCE OF 5.00 FEET AND ANGLE OF S=22°-11'-20" E, TO THE POINT OF
19 COMMENCEMENT.

20 SAID PARCEL DESCRIBED ABOVE CONTAINS 951.0 SQUARE FEET MORE OR LESS.

21 § 4. The discontinuance and alienation of such parkland authorized by
22 this act shall not occur until the city of New York has complied with
23 any federal requirements pertaining to the alienation or conversion of
24 parklands, including satisfying the secretary of the interior that the
25 alienation or conversion complies with all conditions which the secre-
26 tary of the interior deems necessary to assure the provision of
27 adequate recreation properties and opportunities of reasonably equiv-
28 alent location and usefulness.

29 § 5. This act shall take effect immediately and shall be deemed to
30 have been in full force and effect on and after March 5, 2026.